

23VECV05281 23VECV05281

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 23VECV05281 Hearing Date: July 28, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Daniel

Orozco, a minor by and through his Guardian ad Litem Candace Dolin,

Plaintiff,

v.

Los

Angeles Unified School District, et al.

Defendants.

Case Number Department

23VECV05281 107

COURT'S [TENTATIVE]

ORDER RE:

Petition

to Confirm Minor's Compromise

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about March 20, 2023, Plaintiff Daniel Orozco ("Plaintiff") was playing at a playground located at Maria Cardenas Elementary School. (Complaint p. 7.) Plaintiff tripped and fell and collided into a concrete base pole. (Complaint p. 7.) Plaintiff sustained injuries. (Complaint p. 7.)

On

November 28, 2023, Plaintiff, by and through his Guardian ad Litem Candace Dolin, filed a complaint against Defendants Los Angeles Unified School District, Los Angeles County Office of Education, City of Los Angeles, County of Los Angeles, and Does 1 to 50, alleging a premises liability cause of action.

On

January 12, 2024, Plaintiff filed a request to dismiss Defendant County of Los Angeles and that Defendant was dismissed.

On

January 22, 2024, Plaintiff filed a request to dismiss Defendant City of Los Angeles and that Defendant was dismissed.

On

February 9, 2024, Plaintiff filed a request to dismiss Defendant Los Angeles County Office of Education and that Defendant was dismissed.

On

December 1, 2025, Plaintiff filed a notice of settlement of entire case.

On

April 1, 2026, Petitioner Orozco Candace Danielle ("Petitioner") filed a petition for expedited approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Expedited

Petition"). The court denied the Expedited Petition because it did not qualify for expedited approval. (04/27/26 Minute Order.)

On

May 5, 2026, Petitioner filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Second Petition"). On

May 29, 2026, the court denied the Second Petition. (05/29/26 Minute Order p. 6.)

On

June 15, 2026, Petitioner filed another petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Petition"). As of July 23, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

"An agreement to settle or compromise a claim made by a minor 'is valid only after it has been approved, upon the filing of a petition, by the superior court . . . ' in the county where the minor resides or the action could have been brought." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests. . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

"A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952." (Cal. Rules of Court 3.1384(a).) The petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.) "The person petitioning for approval of the

compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.” (Cal. Rules of Court, rule 7.952(a).)

“An order for the deposit of funds of a minor or a person with a disability, and a petition for the withdrawal of such funds, must comply with rules 7.953 and 7.954.” (Cal. Rules of Court, rule 3.1384(b).)

California Rules of Court, rule 7.955(a) requires the court to use “a reasonable fee standard when approving and allowing the amount of attorney’s fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability” and requires that the court “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.”

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the court may consider in determining a reasonable attorney’s fee. Rule 7.955(b)’s factors include,

(1)

The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2)

The amount of the fee in proportion to the value of the services performed.

(3)

The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4)

The amount involved and the results obtained.

(5)

The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6)

The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7)

The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8)

The time and labor required.

(9)

The informed consent of the representative of the minor or person with a disability to the fee.

(10)

The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11)

The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12)

Whether the fee is fixed, hourly, or contingent.

(13)

If the fee is contingent:

(A)

The risk of loss borne by the attorney;

(B)

The amount of costs advanced by the attorney; and

(C)

The delay in payment of fees and reimbursement of costs paid by the attorney.

(14)

Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal.

Rules of Court, rule 7.955(b).)

“A petition requesting

court approval and allowance of an attorney’s fee under (a) must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

III.

DISCUSSION

The

Petition is properly filed on Form MC-350 and is verified by Petitioner.

(Petition pdf p. 10.) Daniel Orozco (“Minor Claimant”) settled with Defendant Los Angeles Unified School District for \$100,000.00. (Petition ¶ 10 pdf p. 3.)

On March 20, 2023, Minor Claimant was playing at a playground located at Maria Cardenas Elementary School. (Petition ¶¶ 4-5 pdf p. 2.) Minor Claimant tripped on an uneven grass area and collided with a concrete base pole. (Petition ¶ 5 pdf p. 2.) Minor Claimant sustained a traumatic head injury, head laceration, and headache. (Petition ¶ 6 pdf p. 2.) Minor Claimant received treatment, including “Vestibular autorotation test & Electronystagmography, Vestibular Rehab Session, (EEG) Electroencephalogram.” (Petition ¶ 7 pdf p. 2.) Minor Claimant has recovered completely from his injuries and there are no permanent injuries. (Petition ¶ 8 pdf p. 2.)

Minor

Claimant’s medical expenses before any reductions total \$18,750.00. (Petition ¶ 12 pdf p. 4.) After reductions, the medical expenses to be paid or reimbursed from the proceeds totals \$13,175.00. (Petition ¶ 12 pdf p. 4.)

Minor

Claimant's counsel requests attorneys' fees in the sum of \$40,000.00. (Petition ¶ 13 pdf p. 5.) Minor Claimant's counsel also requests costs in the sum of \$10,765.06. (Petition ¶ 13 pdf p. 5.)

The

net balance of the proceeds remaining for Minor Claimant is \$36,059.94. (Petition ¶ 15 pdf p. 6.)

Petitioner

requests the sum be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. (Petition ¶ 18 pdf p. 8.) Minor Claimant submits an attachment which specifies the name, branch, and address of the depository. (Petition ¶ 18 pdf p. 8; Attachment 18b(2) pdf p. 124.)

Minor

Claimant's medical records are labeled as Attachment 8. (Petition Attachment 8 pdf p. 11.)

Minor

Claimant's counsel submits a declaration stating they estimate their office's "attorneys and paralegals expended approximately 285 to 425 hours" on the matter. (Attachment 13a, Ghevondyan Declaration ¶ 4, pdf p 106.) Minor Claimant's counsel's declaration supports the fee request by discussing the other relevant factors set forth in California Rules of Court, rule 7.955(b). (Attachment 13a, Ghevonyan Declaration ¶¶ 4-9, pdf pp. 106-107.)

Minor

Claimant's counsel's declaration is labeled Attachment 13a. (Petition Attachment 13a pdf p. 106.)

The

fee agreement is submitted as Attachment 17a. (Petition Attachment 17a pdf pp. 110-123.)

The

attachment containing the name and depository of the financial institution is properly labeled as Attachment 18b(2). (Petition Attachment 18b(2) pdf p. 124.)

For

the following reasons, the Petition is deficient.

In

Paragraph 17, Petitioner states they have not been represented or assisted by an attorney in preparing the Petition. (Petition ¶ 17 pdf p. 7.) The Petition is signed by counsel. (Petition ¶ 23 pdf p. 10.) The court presumes Petitioner was represented or assisted by an attorney in preparing the Petition. If this is correct, Petitioner must say so.

In

its rejection of the Second Petition, the court stated:

The

medical records are insufficient to show Minor Claimant has recovered completely from his injuries. The report dated September 9, 2024, indicates Minor Claimant has not recovered completely from his injuries. (Petition pdf pp. 84-86.) Petitioner must submit and direct the court's attention to a report showing Minor Claimant's current condition showing Minor Claimant has recovered completely from his injuries.

(05/29/26

Minute Order p. 5.)

Petitioner

has not submitted and directed the court's attention to a report showing Minor Claimant's current condition. Minor Claimant's counsel states in their declaration that "Daniel has not required injury-related treatment since September 9, 2024. While he continues to experience intermittent symptoms, their frequency and severity have lessened over time, and his condition has stabilized. The settlement was negotiated with his remaining symptoms and the prospect of future care in view, and the net proceeds will be deposited in a blocked account to remain available for his future needs." (Petition Attachment 13a, Ghevonydan Declaration ¶ 10 pdf p. 107.) Although the court appreciates Minor Claimant's counsel's attempt to inform the court on this matter, Form MC-350 requires "[a]n original or a photocopy of any doctor's report containing a diagnosis of the claimant's injuries or a prognosis for the claimant's recovery, and a report of the claimant's current condition . . ." (Petition ¶ 8 pdf p. 2.) Paragraph 8 further states that "[a] new report is not necessary if a previous report accurately describes the claimant's current condition."

(Petition ¶ 8 pdf p. 2.) The doctor's report dated September 9, 2024 indicates Minor Claimant had not, at that time, completely recovered from his injuries. (Petition Attachment 8 pdf pp. 84-85.) The Petition states Minor Claimant has completely recovered. (Petition ¶ 8a pdf p. 2.) Thus, the court requires a doctor's report on Minor Claimant's current condition. The court will not accept Minor Claimant's counsel's declaration as a substitute for a doctor's report.

In
its rejection of the Second Petition, the court stated:

Petitioner
is identified as "Orozco Candace Danielle" in Paragraph 1 and on page 1 of the Petition. (Petition ¶ 1 pdf p. 1.) Petitioner is identified as "Candice Dolin" on the Settlement Authorization and Release Agreement. (Petition pdf p. 107.) In the complaint, Minor Claimant's Guardian ad Litem is identified as "Candace Dolin[.]" (Complaint p. 1.) Petitioner's name should be consistent throughout the Petition or Petitioner should submit an explanation as to why Petitioner is identified by different names in the Petition and complaint.

(05/29/26
Minute Order p. 6.)

Minor
Claimant's counsel submitted a declaration on June 8, 2026, discussing why Petitioner is identified by different names. This declaration should be submitted with the Petition.

IV.
CONCLUSION

For
the foregoing reasons, the Petition is denied.

Dated: July 28, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court